ANNEX 9
TRADE REMEDIES

Article 1
Definitions

For purposes of this Annex, the following definitions shall apply:

(a) "**AfCFTA Guidelines**" means the Guidelines on Implementation of Trade Remedies;

(b) **"Domestic Industry"** means the producers of the like product, (or directly competitive products in safeguards) in the importing State Party whose collective output represents a major portion of the total domestic production of that product;

(c) **"Dumping"** is when a product is introduced into the commerce of another State Party at less than normal value; if the export price of the product exported from one State Party to another is less than the comparable price in the ordinary course of trade for the like product when destined for consumption in the exporting State Party**;**

(d) **"Injury"** means material injury or threat of material injury to a domestic industry or material retardation of the establishment of an industry;

(e) "Serious Injury" in relation to safeguards means significant overall impairment in the position of a domestic industry;

(f) "**Interested Parties**" shall include:

(i) an exporter or foreign producer or the importer of a product subject to investigation or a trade or business association a majority of the members of which are producers, exporters or importers of such product;

(ii) a producer of the like product in the importing State Party or a trade and business association a majority of the State Parties of which produce the like product in the territory of the importing State Party;

(iii) the government of the third country of origin and of the exporting State Party of the product under investigation; and

(iv) any other domestic or foreign party determined by the investigating authority;

(g) **"Investigating Authority"** means the authority charged with the responsibility of conducting trade remedies investigations in a State Party;

(h) **"Properly Documented Application"** means a written complaint made by or on behalf of the domestic industry in the required format;

(i) **"Safeguards"** means a measure adopted by a State Party where a product is being imported into its territory in such increased quantities, absolute or relative to its domestic production, and under such conditions as to cause or threaten to cause serious injury to its domestic industry that produces like or directly competitive products; and

(j) **"Threat of Serious Injury"** shall be understood to be serious injury that is clearly imminent. A determination of the existence of a threat of serious injury shall be based on facts not merely on allegation, conjecture or remote possibility.

Article 2
Application of Anti-dumping, Countervailing and Safeguard Measures

State Parties may, with respect to goods traded under the provisions of this Annex, apply anti-dumping, countervailing and safeguard measures as provided for in Articles –17 - 19 of the Protocol on Trade in Goods, this Annex and the AfCFTA Guidelines in accordance with relevant WTO Agreements.

Article 3
Application of Global Safeguard Measures

State Parties confirm their rights and obligations under Article XIX of the GATT 1994 and the WTO Agreement on Safeguards.

Article 4
Application of Preferential Safeguard Measures

1. Where, as a result of implementing the Agreement, any product originating in a State Party is being imported into the territory of another State Party in such increased quantities, absolute or relative to domestic production, and under such conditions so as to cause or threaten to cause Serious Injury to the Domestic Industry of like or directly competitive products, such a State Party may apply preferential safeguard measures under the conditions and in accordance with the procedures laid down in this Annex and the AfCFTA Guidelines.

2. A State Party intending to apply definitive preferential safeguard measures shall, before applying such measures, supply the other State Parties concerned with all relevant information, with a view to seek a solution acceptable to all State Parties concerned.

3. The State Party shall examine the information provided in paragraph 2 of this Article in order to facilitate a mutually acceptable resolution of the matter.

4. Where no resolution is reached, the importing State Party may apply preferential safeguard measures as provided for by this Article.

5. The preferential safeguards measures referred to in paragraph 4 of this Article shall immediately be notified to the Secretariat which shall notify all other State Parties.

6. The preferential safeguard measure shall be applied only to the extent necessary to prevent or remedy Serious Injury or threat thereof and to facilitate adjustment following an investigation by the importing State Party under the procedures established in this Annex and the AfCFTA Guidelines.

7. Preferential safeguard measures shall not exceed a period of four (4) years and shall contain clear indications of their progressive elimination at the end of the determined period. The preferential safeguard measure may be extended for another period not exceeding four (4) years, subject to justification by the Investigating Authority.

8. A State Party shall not apply a global safeguard measure simultaneously with the preferential safeguard measure on the same product within the AfCFTA.

Article 5
Provisional Safeguard Measures

1. In critical circumstances where delay would cause damage which would be difficult to repair, the State Party concerned may take a provisional preferential safeguard measure pursuant to a preliminary determination that there is clear evidence that increased imports have caused, or are threatening to cause Serious Injury.

2. The State Party intending to apply such a provisional safeguard measure shall, prior to such application, immediately notify the Secretariat and State Parties concerned.

3. The duration of the provisional safeguard measure shall not exceed two hundred (200) days, during which period the pertinent requirements of this Annex and the AfCFTA Guidelines shall be met. The duration of such provisional safeguard measures shall be counted as part of the initial period and any extension referred to in this Annex and the AfCFTA Guidelines.

4. Such measures shall take the form of tariff increases to be promptly refunded if the subsequent investigation referred to in this Annex and the AfCFTA Guidelines does not determine that increased imports have caused or threatened to cause Serious Injury to a Domestic Industry.

Article 6
Notification

1. In anti-dumping investigations, the Investigating Authority shall avoid, unless a decision has been made to initiate an investigation, any publicising of the application of initiation of any investigation according to the Anti-dumping Agreement, this Annex and the AfCFTA Guidelines. However, after receipt of a properly documented application, and before proceeding to initiate an investigation, the Investigating Authority shall notify the State Party concerned.

2. In subsidies and countervailing investigations, where the Investigating Authority is satisfied that there is sufficient evidence to justify the initiation of an investigation, the State Parties shall be notified.

3. In global safeguard investigations, a State Party shall immediately notify all State Parties of such initiation of the global safeguard investigations according to the WTO Agreement on Safeguards.

4. In preferential safeguard investigations, a State Party shall immediately notify such initiation of the preferential safeguard investigations according to this Annex and the AfCFTA Guidelines.

Article 7
Consultation

1. Once an Investigating Authority of a State Party has received a properly documented application in subsidies and countervailing cases, from its representative Domestic Industry, or upon its own initiative and upon establishment of a prima facie case, such State Party shall hold consultations as provided for in the AfCFTA Guidelines.

2. In preferential safeguard investigations an Investigating Authority of the State Party shall initiate consultations immediately after the provisional safeguard measure is taken.

3. An Investigating Authority intending to apply or extend the period of a safeguard measure shall provide adequate opportunity for prior consultations with the State Parties with substantial interest.

4. Where a mutually agreed solution is reached following consultation, a written agreement on the terms agreed upon shall be produced and the State Party concerned shall notify the Secretariat.

5. The written agreement referred to in paragraph 4 of this Article shall bind the State Parties involved and shall be implemented as provided for in the AfCFTA Guidelines.

6. If no agreed solution is reached, the State Party requesting the consultations shall proceed to initiate and complete its investigation and to implement appropriate measures in accordance with the provisions of the relevant WTO Agreements, this Annex and the AfCFTA Guidelines.

Article 8
Confidentiality

Information which is by nature confidential, or which is provided on a confidential basis by State Parties to an investigation, shall be treated as such by the Investigating Authorities and shall not be disclosed without specific permission of the parties submitting it.

Article 9
Transparency

1. All Interested Parties shall have an opportunity to defend their interests.

2. Notwithstanding paragraph 1 of this Article, there shall be no obligation on any party to attend a meeting, and failure to do so shall not be prejudicial to that party's case.

3. Interested Parties shall have the right, on justification, to present information orally.

4. Oral information referred to in paragraph 3 of this Article shall be taken into account by the authorities only in so far as it is subsequently reproduced in writing and made available to other Interested Parties.

Article 10
Technical Assistance

Technical Assistance to State Parties shall be provided by the Secretariat in collaboration with partners, on request by such State Parties, in order to enhance the capacities of State Parties in the application of trade remedies measures in accordance with the provisions of this Annex and the AfCFTA Guidelines.

Article 11
Capacity Building and Cooperation

1. The Secretariat shall in collaboration with partners facilitate training and capacity building programmes in order to assist State Parties with the implementation of trade remedies as provided for in this Annex and the AfCFTA Guidelines, in the adoption of the necessary national legislation, the establishment of national investigating authorities and other required institutions, the training of officials and other stakeholders involved in the implementation of this Annex and the AfCFTA Guidelines.

2. State Parties are encouraged to cooperate in the area of trade remedies specifically in the dissemination of information to all relevant AfCFTA stakeholders and private parties.

Article 12
Sub-Committee on Trade Remedies

1. The Committee for Trade in Goods shall, in accordance with Article 31 of the Protocol on Trade in Goods, establish a Sub-Committee on Trade Remedies.

2. The Sub-Committee shall be composed of duly designated representatives from State Parties and shall carry out the responsibilities assigned to it under this Annex or by the Committee on Trade in Goods.

Article 13
AfCFTA Guidelines on Implementation of Trade Remedies

1. The AfCFTA Guidelines on the Implementation of Trade Remedies shall, upon adoption, form an integral part of this Annex.

2. Pending the adoption of the AfCFTA Guidelines, the relevant provisions of the WTO Agreements, national legislation and regional economic communities agreements relating to trade remedies may apply, where applicable.

Article 14
Dispute Settlement

Any dispute between the State Parties arising out of or relating to the interpretation or application of any provision of this Annex and its Guidelines, shall be settled in accordance with the Protocol on Rules and Procedures on the Settlement of Disputes taking into account the special nature of trade remedies.

Article 15
Review and Amendment

This Annex shall be subject to review and amendments in accordance with Articles 28 and 29 of the Agreement.